
PR0001317 IN THE MATTER OF ROGER F. HOOPER III

First and Final Account and Report of Executor, Petition for Settlement, Petition for Final Distribution, and Allowance of Statutory Compensation to Executor, filed by Rachel Hooper on 5/15/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

PR0001343 IN THE MATTER OF DIANE G. CLADIANOS-VICKERS

Petition for Probate of Will and for Letters Testamentary, filed by Kip Eldredge on 5/22/26.

Ruling. This matter is **continued to August 13, 2026, at 9:00 a.m. Petitioner Kit Eldredge is ordered to:** Mail notice to all interested parties, including the Marin County Public Administrator and Danis Cladianos, using the mandatory Judicial Council Form "Notice of Petition to Administer Estate." (Judicial Council Forms, form DE-121; Prob. Code, § 8110.)

1. File a copy of the DE-121 that was mailed, with the Proof of Service completed on page 2 showing that all interested parties received at least fifteen days' notice of the Petition for Probate of Will and for Letters Testamentary. (Prob. C. § 8110.)
2. Lodge the original Will with the Court. (Prob. Code, § 8200.)
3. Submit a proposed Order to the Court on the mandatory Judicial Council Form "Order for Probate." (Judicial Council Forms, form DE-140; Super. Ct. Marin County, Local Rules, rule 6.2(C), Submission of Proposed Orders.)
4. All documents must be filed/submitted at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PR0001404 IN THE MATTER OF THE JAY DEE WARK CREDIT SHELTER TRUST

1. Jana Wark Maloney's Verified Petition for (1) Construction of Trust and (2) Order Voiding Trustor's Purported Exercise of Power of Appointment, filed by Jana Wark Maloney on 8/8/25.
2. Motion for Order Quashing Deposition Subpoenas and Staying Depositions, filed by Sidney (sic) Wark on 12/31/25.
3. Verified Petition for Order Compelling Trustee Sydney Wark to (1) Produce Trust Information and (2) Account; and for (3) Suspension and (4) Removal of Trustee, filed by Jana Wark on 4/30/26.

Ruling. Pursuant to Marin County Rule, Probate 6.4 and Civil 2.13B, on May 5, 2026, this Court appointed Steven Perl as Discovery Facilitator for Sidney Wark's Motion filed on December 31, 2025, for Order Quashing Depositions Subpoenas and Staying Deposition.

The Court has not received a Declaration of Non-Resolution from either party, in particular the moving party, five court days prior to the hearing on the motion set for June 25, 2026, as required by MCR Civ 2.13H. The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

requires that “[t]he Declaration shall not exceed three pages and shall briefly summarize the remaining disputed issues and each party’s contentions.” (MCR Civ 2.13H(1), emphasis added.)

The Court concludes and expects that this discovery matter is being resolved by the facilitator. **The motion is therefore ordered OFF CALENDAR.** (MCR Civ 2.13H(2).) Should the parties fail to reach resolution through the facilitator, either party may request (by ex parte application) that the Court re-set the motion for an expedited hearing.

The Court **refers** the Amended MOTION FOR ORDER QUASHING DEPOSITION SUBPOENAS AND STAYING DEPOSITIONS OF WELLS FARGO BANK, N.A., USAA FEDERAL SAVINGS BANK AND JPMORGAN CHASE BANK filed on April 27, 2026, to the Discovery Facilitator Program. **If Mr. Stephen Perl is available, the Court asks the Discovery Facilitator Program to appoint Mr. Perl to this discovery dispute.**

Any response to the Verified Petition for Order Compelling Trustee Sydney Wark to (1) Produce Trust Information and (2) Account; and for (3) Suspension and (4) Removal of Trustee, filed by Jana Wark on 4/30/26 **shall be filed by July 10, 2026, or shall be deemed waived.** Any reply to any filed response **shall be filed by August 7, 2026 or shall be deemed waived.**

The Court is in receipt of the objections filed by Sydney Wark on October 28, 2026 (Sydney Wark’s Objections) to Jana Wark Maloney’s Verified Petition for (1) Construction of Trust and (2) Order Voiding Trustor’s Purported Exercise of Power of Appointment, filed by Jana Wark Maloney on 8/8/25.

Any reply to Sydney Wark’s objections **shall be filed by July 10, 2026, or shall be deemed waived.**

All outstanding matters are now **continued to September 17, 2026, at 9:00 a.m.**

PR0001515 IN THE MATTER OF THE APARTON FAMILY TRUST

Order to Show Cause re Dismissal of Petition to Invalidate Trust Restatement, due to notice of settlement of entire case filed on 2/5/26.

Ruling. The Court is in receipt of the response to the Order to Show Cause filed by counsel for Victoria Parker. Absent objections, this matter is **continued to August 27, 2026, at 9:00 a.m.** on an **Order to Show Cause** re Dismissal of Petition to Invalidate Trust Restatement, due to notice of settlement of the entire case on February 5, 2026.

PR0001647 IN THE MATTER OF THE WILLIAM C. GREENWOOD FAMILY TRUST

Petition for Approval of Accounting and Acts of Trustee and Ratification of Trustee’s Fees, filed by Gina M. Greenwood-Meinert on 5/15/26.

Ruling. Pursuant to stipulation, this matter is **continued to September 24, 2026, at 9:00 a.m.**

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).